ENTERED
DEC 10 2026
CLERK, STATE COURT
RIVERTON COUNTY

IN THE STATE COURT OF RIVERTON COUNTY

JOHN DOE,
Plaintiff,

v.

ROBERT SMITH,
Defendant.

CIVIL ACTION
No. 26-CV-04417

ORDER OF REFERRAL TO MEDIATION

Pursuant to the Court's alternative dispute resolution program and its Scheduling Order entered this date, IT IS HEREBY ORDERED:

1. **Referral.** This action is referred to mediation. Mediation shall be **completed by March 31, 2027**.
2. **Selection of mediator.** Within thirty (30) days of this Order, counsel shall jointly select a registered mediator and file a notice identifying the mediator and the date of the session. If counsel cannot agree, the Court will appoint a mediator from its roster.
3. **Attendance.** The following shall attend the mediation session in person unless the mediator, for good cause, permits attendance by videoconference: (a) each party; (b) lead trial counsel for each party; and (c) a representative of each insurer that may be obligated to pay all or part of any judgment, with **full authority to settle** without further consultation.
4. **Mediation statements.** Each party shall deliver to the mediator, by the date the mediator sets, a confidential mediation statement, which shall not be filed with the Court.
5. **Confidentiality.** All mediation communications are confidential and may not be used for any purpose in this action except as permitted by law. Nothing said or produced at mediation constitutes a waiver of any privilege.
6. **Fees.** The mediator's fees shall be divided equally between the sides unless otherwise agreed, and paid as the mediator directs.
7. **Report.** Within seven (7) days after the session, the mediator shall file a report stating only whether the case settled in whole or in part, or reached impasse. If the case settles, counsel shall submit the dismissal or other final papers promptly.
8. **Sanctions.** Failure to comply with this Order may result in sanctions, including an award of the other side's fees and costs of the session.

SO ORDERED this 10th day of December, 2026.

Theodore A. Rourke

Hon. Theodore A. Rourke
Judge, State Court of Riverton County

Distribution: Elijah Thone, LSH Law Group (Attorneys for Plaintiff) · Grant Mercer, Mercer & Hale LLP (Attorneys for Defendant) · ADR Coordinator

CARLA BENTON MEDIATION

Hon. Carla Benton (Ret.) · Mediation & Neutral Evaluation
250 Commerce St, Suite 410, Riverton · (555) 010-3460 Case ref. CBM-27-0042

January 12, 2027 · **VIA EMAIL AND U.S. MAIL**

Elijah Thone, Esq.
LSH Law Group
500 Commerce St, Suite 1200
Riverton
Counsel for Plaintiff

Grant Mercer, Esq.
Mercer & Hale LLP
10 Court Sq
Riverton
Counsel for Defendant

Re: **Confirmation of Mediation** — *John Doe v. Robert Smith*, State Court of Riverton County, Civil Action No. 26-CV-04417 (Hon. Theodore A. Rourke)

Dear Counsel:

Thank you for selecting me to mediate this matter under the Court's Order of Referral to Mediation entered December 10, 2026. This letter confirms the arrangements.

SESSION	
DATE Thursday, March 18, 2027	TIME 9:30 a.m. (full day reserved)
LOCATION 250 Commerce St, Suite 410, Riverton — in person (caucus rooms provided)	
MEDIATION STATEMENT & BINDER DUE **Thursday, March 11, 2027** — email + one bound copy to my office	COURT DEADLINE TO COMPLETE MEDIATION March 31, 2027

Confidential mediation statements. Each side should submit a confidential statement of no more than ten (10) pages addressing liability, injuries and damages, the history of settlement negotiations (including the last demand and offer), insurance coverage, and any lien issues. Please include a binder of the key exhibits (tabbed). Statements are for my eyes only and will not be shared with the other side unless you tell me otherwise.

Attendance and authority. As the Court's Order requires, the parties, lead counsel and a representative of each insurer with **full settlement authority** must attend in person for the entire session. A representative whose authority is limited, or who must telephone someone else to approve a number, does not satisfy this requirement. Mr. Mercer, please confirm the name and title of the Keystone Mutual representative who will attend.

Mr. Thone has advised that his client's uninsured motorist carriers may need to consent to any settlement with the Defendant. If so, please arrange for a representative of each carrier to be available by telephone throughout the session so that any consent can be given and confirmed in writing the same day.

Fees and cancellation. My fee agreement is enclosed; fees are divided equally between the sides, as the Order provides. A session cancelled fewer than ten (10) business days before the date is billed at the full-day rate.

Very truly yours,

Carla Benton
Hon. Carla Benton (Ret.)
Mediator

Enclosure: Mediation fee agreement
cc: ADR Coordinator, State Court of Riverton County (notice of mediator selection and session date)